

Senate File 515

S-3092

1 Amend Senate File 515 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. Section 598.1, Code 2025, is amended by adding
5 the following new subsection:

6 NEW SUBSECTION. 2A. "*Educational setting*" means the
7 type of educational environment, not a specific school or
8 other geographic location, in which education is conducted.
9 "*Educational setting*" includes a public school, an accredited
10 nonpublic school, competent private instruction or independent
11 private instruction in accordance with the provisions of
12 chapter 299A, or any other method of educational instruction
13 that satisfies the compulsory education requirements of chapter
14 299.

15 Sec. 2. Section 598.10, subsection 1, Code 2025, is amended
16 by adding the following new paragraph:

17 NEW PARAGRAPH. c. If the parents are in disagreement over a
18 minor child's educational setting, the court shall consider the
19 educational setting of the minor child in making a temporary
20 order for custody. There is a rebuttable presumption that
21 it is in the best interest of the minor child to remain in
22 the educational setting in which the minor child was enrolled
23 during the immediately preceding school year. The presumption
24 is rebuttable only by a preponderance of the evidence that such
25 educational setting is not in the best interest of the child.

26 Sec. 3. Section 598.41, Code 2025, is amended by adding the
27 following new subsections:

28 NEW SUBSECTION. 4A. If joint legal custody is awarded
29 to both parents, but the parents are in disagreement over a
30 minor child's educational setting, the court shall consider,
31 and include a provision in the custody order regarding, the
32 educational setting of the minor child. There is a rebuttable
33 presumption that it is in the best interest of the minor child
34 to remain in the educational setting in which the minor child
35 was enrolled during the immediately preceding school year.

1 The presumption is rebuttable only by a preponderance of the
2 evidence that such educational setting is not in the best
3 interest of the child.

4 NEW SUBSECTION. 10. All orders relating to custody of a
5 child shall specify the rights and responsibilities of each
6 parent relative to the minor child's educational setting.
7 The order shall, at a minimum, specify a parent's rights
8 and responsibilities regarding physical access to the child
9 during the school day; access to records involving the health,
10 education, and welfare of the child; decision-making authority
11 including instances when parental consent or authorization is
12 required; and the removal of the child from the premises of the
13 educational setting during school hours. However, the order
14 shall not require that a parent have physical access to a child
15 during the school day or be allowed to remove the child from
16 the premises of the educational setting during school hours
17 if the child is being provided competent private instruction
18 or independent private instruction in the home of the other
19 parent in accordance with chapter 299A. This exception shall
20 not apply to competent private instruction or independent
21 private instruction being given at a location outside the home
22 of either parent. Any parent with legal custody of the child
23 shall provide a copy of the order to the educational setting
24 and to the school district of the child to whom the order
25 applies.>

HERMAN C. QUIRMBACH